

STATE OF INDIANA IN THE _____ COURT
 COUNTY OF _____ CAUSE NO. _____

IN RE participant/case info review zone THE PETITION FOR EXPUNGEMENT
 OF RECORDS OF ARREST, CRIMINAL CHARGES,
 OR JUVENILE DELINQUENCY ALLEGATIONS OF:

 Petitioner

APPEARANCE BY UNREPRESENTED PERSON IN EXPUNGEMENT MATTER

1. My name is _____ and I am the Petitioner in this case I am not represented by a lawyer.

2. My current address is:

Email address: _____

☐ *I will accept service at the above email address.*

Phone: _____

Fax: _____

OR, if in a related case, you have used the Attorney General confidential address, you may check the box below:

☐ Attorney General confidential address

3. This is an XP case type as defined in Administrative Rule 8(B)(3).

4. There are related cases: *(If yes, please indicate below)*

☐ Yes

☐ No

Caption and case number of related cases:

Caption: _____ Case No.: _____

Caption: _____ Case No.: _____

Caption: _____ Case No.: _____

signature/date review zone

Caption: _____ Case No.: _____

Caption: _____ Case No.: _____

Caption: _____ Case No.: _____

Additional information as required by local rule:

Signature

CERTIFICATE OF SERVICE

☐ I hereby certify that I sent a copy of this document on _____ by first-class U.S. mail, postage prepaid or via hand-delivery to the _____ County Prosecutor at the following address:

☐ I hereby certify that on _____ a copy of this document was served upon the _____ County Prosecutor via the Indiana E-filing System.

Signature

STATE OF INDIANA

IN THE _____ COURT

COUNTY OF _____

CAUSE NO: _____

☐

An exhibit listing additional case numbers is attached

Related Criminal Cause Numbers:

IN RE THE PETITION FOR
EXPUNGEMENT OF CONVICTION
RECORDS OF:

Petitioner

**VERIFIED PETITION FOR EXPUNGEMENT OF CONVICTION RECORDS PURSUANT TO
I.C. 35-38-9**

Comes now the Petitioner, _____, in person and duly sworn upon their oath, and does file this Petition for Expungement/Sealing of Records under the provisions of IC 35-38-9 et. seq. and would respectfully request that the Court grant said petition and find that the convictions listed in this petition be expunged pursuant to statute and that access to these convictions be expunged in accordance with IC 35-38-9-6 or IC 35-38-9-7. In support thereof, the Petitioner would swear and affirm to the following factual information:

INFORMATION PERTAINING TO ALL EXPUNGEMENT MATTERS

1. That Petitioner's full name is _____, and that Petitioner has used the following other names or aliases:

2. That Petitioner's date of birth is _____; Petitioner's Social Security Number is XXX-XX-_____; and Petitioner's driver's license number is _____.

3. Since the commission of the first criminal offense addressed in this Petition, Petitioner has resided at the following addresses:

☐ Petitioner has attached an additional page, marked as "Exhibit ---," to the end of this petition that contains a list of the remaining addresses where petitioner has resided since the first criminal offense addressed in this petition.

4. Petitioner affirms, under oath and subject to penalties for the crime of Perjury that, to the best of their knowledge, there are no criminal investigations and/or charges pending against them in any jurisdiction.

5. The following is a list of all criminal convictions entered against Petitioner (including court; cause number; title and class/level of offense(s) on which conviction was entered; date offense was committed; date of conviction; appellate cause number (if applicable); and date of appellate opinion (if applicable)):

Page ____ of ____

a.

b.

c.

d.

☐ Petitioner has attached an additional page, marked as “Exhibit ---,” to the end of this petition listing other criminal convictions that have been entered against them.

6. Petitioner acknowledges that they understand that IC 35-38-9-9(i) allows them to file only one petition for expungement during their lifetime. Petitioner certifies that they have made a good faith effort to remember and obtain records for all of their convictions. At the time of filing this petition, Petitioner has no knowledge of any _____ County convictions other than those that are addressed by this petition. _____ (Petitioner’s initials)

7. The following is a list of petitions to address convictions that are eligible for expungement under I.C. § 35-38-9-2 through 5 that the Petitioner has filed or will be filing in other Indiana counties:

a.

b.

☐ Petitioner has attached an additional page, marked as “Exhibit ---,” to the end of this petition listing additional expungement petitions filed in other Indiana counties.

c. Petitioner has served a copy of this petition upon the Prosecuting Attorney in accordance with the Indiana Rules of Trial Procedure.

**Take out this page and insert your
conviction Facts pages (from the
Conviction Insert Forms)**

ADDITIONAL INFORMATION SUBMITTED BY PETITIONER

1. Petitioner submits the following additional information to be considered by this Court in support of the Petition:

- a. _____

- b. _____

- c. _____

The following documents are attached to this Petition as exhibits:

- ☐ A certified copy of a limited criminal history transcript from the Indiana State Police.
- ☐ A copy of the chronological case summary for the following cause numbers showing payment of all fines, fees and court costs:

- ☐ Other documentation as listed here:

WHEREFORE, Petitioner respectfully requests this Court grant this Petition and **ORDER**:

1. As to Expungement Matters _____, the expungement of Petitioner's conviction records in accordance with **I.C. 35-38-9-6**, specifically:
- a. The following agencies and entities shall be prohibited from releasing Petitioner's records or information in Petitioner's records, including but not limited to conviction records, arrest records, dismissed charge records, not-guilty records, and records of collateral actions, that related to the expunged convictions or that relate to the cause number of the expunged convictions, to anyone without a court order, other than a law enforcement officer acting in the court of the officer's official duty:
- i. The Indiana Department of Corrections;
 - ii. The Indiana Bureau of Motor Vehicles;
 - iii. Each law enforcement agency who incarcerated, provided treatment for, or provided other services for the person under an order of the court; and
 - iv. Each person or entity who incarcerated, provided treatment for, or provided other services for the person under an order of the court.
- b. The Indiana State Police Central Repository for Criminal History Information is ordered to seal all Petitioner's records for expunged convictions and records for all other matters related to the cause

number of expunged conviction(s). This includes but is not limited to conviction records, arrest records, dismissed charge records, not-guilty records, and records of collateral actions, that related to the expunged convictions or that relate to the cause number of the expunged convictions. Thus, the Central Repository must seal all of Petitioner's conviction records, dismissed charge records, not guilty records, arrest records, records of collateral actions, and any other records related to the cause number of the expunged conviction(s). Central Repository is also prohibited from disclosing these records to anyone except:

- i. a prosecuting attorney, if:
 - (a) authorized by a court order; and
 - (b) needed to carry out the official duties of the prosecuting attorney;
- ii. a defense attorney, if:
 - (a) authorized by a court order; and
 - (b) needed to carry out the professional duties of the defense attorney;
- iii. a probation department, if:
 - (a) authorized by a court order; and
 - (b) necessary to prepare a presentence report; and
- iv. the Federal Bureau of Investigation and the Department of Homeland Security, if disclosure is required to comply with an agreement relating to the sharing of criminal history information;
- v. the:
 - (a) supreme court;
 - (b) members of the state board of law examiners; and
 - (c) executive director of the state board of law examiners; and
 - (d) employees of the state board of law examiners, in accordance with rules adopted by the state board of law examiners;
 for the purposes of determining whether an applicant possesses the necessary good moral character for admission to the bar; and
- vi. a person required to access expunged records to comply with the Secure and Fair Enforcement for Mortgage Licensing Act (12 U.S.C. 5101 et seq.) or regulations adopted under the Secure and Fair Enforcement for Mortgage Licensing Act.
- vii. the bureau of motor vehicles, the Federal Motor Carrier Administration, and the Commercial Drivers License Information System (CDLIS), if disclosure is required to comply with IC 9-24-6-2(d) relating to reporting a conviction for a violation of a traffic control law.

c. The Clerk of the Appellate Courts shall be notified to seal any records in the Clerk's possession that relate to the conviction in a manner consistent with I.C. 35-38-9-6(c):

- i. redact the opinion or memorandum decision as it appears on the computer gateway administered by the office of technology so that it does not include the petitioner's name (in the same manner that opinions involving juveniles are redacted); and
- ii. provide a redacted copy of the opinion to any publisher or organization to whom the opinion or memorandum decision is provided after the date of the order of expungement.

- d. Except as provided in I.C. 35-38-9-6(c) and (d), the records of the sentencing court, a juvenile court, the Court of Appeals or Indiana, and the Indiana Supreme Court concerning Petitioner shall be permanently sealed;
2. As to Expungement Matters _____, the expungement of Petitioner's conviction records in accordance with **I.C. 35-38-9-7**, specifically that:
- a. Petitioner's conviction records under the listed cause numbers shall be expunged in accordance with I.C. 35-38-9-7:
- i. Court records and other public records relating to the arrest, conviction, or sentence of Petitioner that have been marked expunged shall remain public records. However, the Court now orders that those records be clearly and visibly marked or identified as being expunged.
- ii. The following agencies and entities in possession of records that relate to the conviction ordered to be marked as expunged shall add an entry to Petitioner's record of arrest, conviction, or sentence in the criminal history database stating that the records are marked as expunged:
- (a) The Indiana Department of Correction;
- (b) The Indiana Bureau of Motor Vehicles;
- (c) Each law enforcement agency who incarcerated, provided treatment for, or provided other services for the person under an order of the court; and
- (d) Each person or entity who incarcerated, provided treatment for, or provided other services for the person under an order of the court.
- and grant all other relief just and proper in the premises.

AFFIRMATION

I AFFIRM, UNDER THE PENALTIES OF PERJURY, THAT THE FOREGOING REPRESENTATIONS ARE TRUE AND ACCURATE.

_____, Petitioner
[Printed name]

CERTIFICATE OF SERVICE

The Petitioner hereby certifies that the foregoing pleadings have been served upon the following persons or parties, via US First Class mail, electronic mail, facsimile transmission, or hand delivery on this day _____:

_____ County Prosecutor's Office

Attn: _____

Signature of Petitioner

_____, Petitioner
[Printed name]

Phone: _____ Email: _____

Form ACR (Access to Court Records)

STATE OF INDIANA IN THE _____ COURT

COUNTY OF _____ CAUSE NO. _____

IN RE THE PETITION FOR EXPUNGEMENT
 OF RECORDS OF ARREST, CRIMINAL CHARGES,
 OR JUVENILE DELINQUENCY ALLEGATIONS OF:

Petitioner

**Notice of Exclusion of Confidential Information from Public Access
 (FILED WITH TRIAL COURT CLERK)**

Contemporaneous with the filing of this notice, _____ has filed confidential information under the Indiana Rules on Access to Court Records. _____, provides this notice that the confidential information is to remain excluded from public access in accordance with the authority listed below:

Name or description of documentACR grounds for exclusion

Confidential Information Form listing
 Petitioner's full Social Security Number

Access to Court Records Rule 5

Signature**CERTIFICATE OF SERVICE**

☐ I hereby certify that I sent a copy of this document on _____ by first-class U.S. mail, postage prepaid or via hand-delivery to the _____ County Prosecutor at the following address:

☐ I hereby certify that on _____ a copy of this document was served upon the _____ County Prosecutor via the Indiana E-filing System.

Signature

Not Public Record

CONFIDENTIAL INFORMATION FORM

XP CAUSE NUMBER: _____

PETITIONER'S NAME: _____

PETITIONER'S FULL SOCIAL SECURITY NUMBER: _____

**ATTENTION CLERK: FOR SELF REPRESENTED LITIGANTS TREAT THIS FORM
AS IF IT IS PRINTED ON GREEN PAPER.**

IF THIS DOCUMENT IS E-FILED, FILE THIS AS A CONFIDENTIAL DOCUMENT

Not Public Record

NOT PUBLIC RECORD

STATE OF INDIANA

IN THE _____

COURT

COUNTY OF _____

CAUSE NO: _____

☐

An exhibit listing additional case numbers is attached

IN RE THE PETITION FOR
EXPUNGEMENT OF CONVICTION
RECORDS OF:

Related Criminal Cause Numbers:

Petitioner

FINDINGS AND ORDER GRANTING PETITIONER'S VERIFIED PETITION FOR EXPUNGEMENT OF CONVICTION RECORDS PURSUANT TO I.C. § 35-38-9

Petitioner, _____, [by counsel, _____,]
filed this *Verified Petition for Expungement of Conviction Records Pursuant to I.C. §35-38-9*, and the State of Indiana, by
counsel, ☐ filed ☐ did not file its Response to Petitioner's Verified Petition for Expungement.

Petitioner's Verified Petition for Expungement seeks relief as provided by I.C. §35-38-9 for multiple cases arising
out of _____ County, Indiana that resulted in convictions.

- ☐ Upon review of said Petition, ☐ and the State of Indiana's Response, the Court finds that the State has provided no legal basis upon which to state an objection to the Court's granting of Petitioner's Verified Petition for Expungement/Sealing of Arrest Records.
- ☐ A hearing was held on _____ regarding said Petition of which all parties were given notice and during which all parties were given an opportunity to present evidence and Arguments.

FINDINGS AS TO ALL EXPUNGEMENT MATTER:

The Court now finds by a preponderance of the evidence that:

1. Petitioner's Verified Petition for Expungement complies with the requirements of I.C. § 35-38-9-8.
2. Consistent with the provisions of I.C. § 35-38-9-9(i) and except as provided in I.C. § 35-38-9-9Ij) and (k), Petitioner has only filed one (1) Verified Petition for Expungement in their lifetime.
3. The following is a list of petitions to address convictions that are eligible for expungement under I.C. § 35-38-9-2 through 5 that the Petitioner has filed or will be filing in other Indiana counties:

- a. _____

- b. _____

☐

An additional page has been attached to the end of this petition, marked as
"Exhibit _____" listing additional expungement petitions filed in other Indiana counties.

4. No charges are currently pending against Petitioner.

Take out this page and insert your conviction Findings pages (from the Conviction Insert Forms)

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ORDER

It is therefore ORDERED, ADJUDGED, and DECREED that Petitioner's Verified Petition for Expungement is GRANTED as to EXPUNGEMENT MATTERS: _____ and DENIED as to EXPUNGEMENT MATTERS: _____. All information necessary to identify particular agency records that are to be expunged pursuant to this Order has been included in **Exhibit A** attached to this Order.

1. **As to all EXPUNGEMENT MATTERS for which an expungement is granted:** The following provisions of this Order shall apply to all except those person or entities specifically listed to whom sealed records may be disclosed pursuant to paragraph 2(b) of this Order:
 - a. Except as provided in I.C. §35-38-9-6(f), Petitioner's civil rights shall be restored, including the right to vote, to hold public office, to be a proper person under IC §35-47-1-7(2), and to serve as a juror.
 - b. It is unlawful discrimination for any person to:
 - i. suspend;
 - ii. expel;
 - iii. refuse to employ;
 - iv. refuse to admit;
 - v. refuse to grant or renew a license, permit, or certificate necessary to engage in any activity, occupation, or profession; or
 - vi. otherwise discriminate against;

Petitioner because of a conviction or arrest record expunged or sealed under this Order.
 - c. In any application for employment, a license, or other right or privilege, Petitioner may be questioned about a previous criminal record only in terms that exclude expunged convictions or arrests.
 - d. Petitioner shall be treated as if Petitioner had never been convicted of the offense. However, upon subsequent arrest or conviction for an unrelated offense, the expunged conviction: (1) may be considered by the Court in determining the sentence imposed for the new offense; (2) is a prior unrelated conviction for the purposes of a habitual offender enhancement and enhancing the new offense based on a prior conviction; and (3) may be admitted as evidence in the proceeding for a new offense as if the conviction had not been expunged.
 - e. If Petitioner is required to register as a sex offender based on the commission of a felony that has been expunged in accordance with this Order:
 - i. the expungement does not affect the operation of the sex offender registry website, any person's ability to access Petitioner's records, records required to be maintained concerning sex or violent offenders, or any registration requirement imposed on the Petitioner; and
 - ii. the expunged conviction must be clearly marked as expunged on the sex offender registry website.
 - f. Expungement of any conviction records in accordance with this order does not affect any existing or pending driver's license suspension.
 - g. Nothing in this Order should be construed to prevent the Indiana Bureau of Motor Vehicles from reporting information about conviction for a violation of a traffic control law to the Commercial Drivers License Information System (CDLIS) in accordance with I.C. §9-24-6-2(d).

NOT PUBLIC RECORD

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2. **As to EXPUNGEMENT MATTERS** _____
 of Petitioner's records, including but not limited to conviction records, arrest records, dismissed charge records, not-guilty records, and records of collateral actions that relate to the expunged convictions or that relate to the cause number of the expunged convictions under the following Cause Numbers, are expunged in accordance with Indiana Code §35-38-9-6:
- _____
- _____
- _____

- a. **Records in possession of state and local agencies and service providers:** The following agencies and entities are hereby prohibited from releasing Petitioner's record including but not limited to conviction records, arrest records, dismissed charge records, not-guilty records, and records of collateral actions that relate to the expunged convictions or that relate to the cause number of the expunged convictions to anyone without a court order, other than a law enforcement officer acting in the court of the officer's official duty:
- i. The Indiana Department of Corrections;
 - ii. The Indiana Bureau of Motor Vehicles, except as provided in paragraph 1(g) of this Order,
 - iii. Each law enforcement agency who incarcerated, provided treatment for, or provided other services for the person under an order of the court, including:
 - (a) _____;
 - (b) _____; and
 - iv. Each person or entity who incarcerated, provided treatment for, or provided other services for the person under an order of the court, including:
 - (a) _____;
 - (b) _____.
- b. **Records in possession of the Indiana State Police Central Records Repository:** In accordance with I.C. §35-38-9-6(a)(2), the Indiana State Police Central Repository for Criminal History Information is ordered to seal all of Petitioner's records for Cause Number _____.
- _____ This includes, but is not limited to, conviction records, arrest records, dismissed charge records, not-guilty records, and records of collateral actions that relate to the expunged convictions or any other matters that relate to this cause number. The Central Repository is also prohibited from disclosing these records to anyone except:
- i. a prosecuting attorney, if:
 - (a) authorized by a court order; and
 - (b) needed to carry out the official duties of the prosecuting attorney;
 - ii. a defense attorney, if:
 - (a) authorized by a court order; and
 - (b) needed to carry out the professional duties of the defense attorney
 - iii. a probation department, if:
 - (a) authorized by a court order; and
 - (b) necessary to prepare a presentence report; and
 - iv. the Federal Bureau of Investigation and the Department of Homeland Security, if disclosure is required to comply with an agreement relating to the sharing of criminal history information;
 - v. the:
 - (a) supreme court;
 - (b) members of the state board of law examiners;
 - (c) executive director of the state board of law examiners; and
 - (d) employees of the state board of law examiners, in accordance with rules adopted by the state board of law examiners;

NOT PUBLIC RECORD

~~NOT PUBLIC RECORD~~

for the purpose of determining whether an applicant possesses the necessary good moral character for admission to the bar;

- vi. a person required to access expunged records to comply with the Secure and Fair Enforcement for Mortgage Licensing Act (12 U.S.C. 5101 et seq.) or regulations adopted under the Secure and Fair Enforcement for Mortgage Licensing Act; and
- vii. the Bureau of Motor Vehicles, the Federal Motor Carrier Administration, and the Commercial Drivers License information System (CDLIS), if disclosure is required to comply with IC §9-24-6-2(d) relating to reporting a conviction for a violation of a traffic control law.

- c. **Records of the sentencing court, the juvenile court, the Court of Appeals and the Supreme Court:** Except as provided in IC §35-38-9-6(d), the records of the sentencing court, a juvenile court, the Court of Appeals of Indiana, and the Indiana Supreme Court concerning Petitioner shall be permanently sealed.
- d. As to court records stored under the following appellate/post conviction relief cause numbers:

the Clerk shall send a copy of this Order to the Indiana Clerk of the Appellate Courts, and Clerk of the Appellate Courts shall:

- i. redact any opinion or memorandum decision in which the Petitioner has been named as it appears on the computer gateway administered by the office of technology so that it does not include the Petitioner's name (in the same manner by which opinions involving juveniles are redacted); and
- ii. provide a redacted copy of the opinion to any publisher or organization to whom the opinion or memorandum decision is provided after the date of the order of expungement
- e. The Clerk shall send a copy of this Order to all parties of record or their attorneys to the Indiana State Police Central Repository for Criminal History, to the Indiana Department of Corrections, to the Indiana Bureau of Motor Vehicles, and the following law enforcement agencies or entities that possess records related to Petitioner's conviction:
 - i. The _____ County Sheriff's Department
 - ii. The local law enforcement agencies:
 - (a) _____;
 - (b) _____;
 - iii. All persons or entities who incarcerated, provided treatment for, or provided other services for the person under an order of the court, including:
 - (a) _____;
 - (b) _____.

- 3. **As to EXPUNGEMENT MATTERS** _____
pertaining to records related to the following criminal and MC cause numbers:

Petitioner's conviction records shall be **expunged in accordance with IC §35-38-9-7**, specifically:

~~NOT PUBLIC RECORD~~

- SO ORDERED** this _____

__Court

Notice to be given by: ☐ Court ☐ Clerk ☐ Other: _____

Approved by the Coalition for Court Access
CCA-XP-0220-7011
www.indianalegalhelp.org

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PROOF OF NOTICE

A copy of the entry was served either by mail to the address of record, deposited in the attorney's distribution box, or personally distributed to the following persons:

State of Indiana: _____

Petitioner: _____

Date of notice: _____

Initial of person who notified parties: _____ Court _____ Clerk _____ Other _____

Distribution To:

☐ _____
Attorney for Petitioner

Indiana State Police
Attn: Records Division
100 N Senate Ave., Room N301 (East)
Indianapolis, IN 46204

☐ _____
Petitioner

Bureau of Motor Vehicles
IGC North, Room 402
100 N Senate Ave.
Indianapolis, IN 46204

_____ County Prosecutor's Office
Attn: _____

Indiana Department of Correction
Attn: Records Division
302 W. Washington Street, Room E-334
Indianapolis, IN 46204

_____ County Sheriff's Department

Office of the Indiana Attorney General
Indiana Government Center South, 5th Floor
302 W. Washington Street
Indianapolis, IN 46204

☐ _____ County Clerk

☐ Clerk of the Appellate Courts
216 State House
200 West Washington Street
Indianapolis, IN 46204

[check the 'County Clerk' box only if this ORDER Applies to court records stored under a separate MC Cause number that pertain to a PROBATION that was transferred to another county.]

[check 'Clerk of the Appellate Courts' only if one or of the expunged cases was appealed.]

Law Enforcement Agencies:

☐ Indiana Supreme Court
Office of Judicial Administration
Trial Court Technology
251 N. Illinois Street, Suite 700
Indianapolis, IN 46204

[check this address only if a NO CONTACT ORDER was issued in one or more of the expunged cases as a condition of BOND or PROBATION.]

NOT PUBLIC RECORD

Other persons or entities that are required to act under this order because they possess official records related to the expunged convictions:

This image shows a single sheet of white paper with horizontal ruling lines. The lines are evenly spaced and run across the width of the page. There are no margins, text, or other markings on the paper.

NOT PUBLIC RECORD

Take out this page and insert your non-conviction Exhibit pages (from the Conviction Insert Forms)

Attach a document to the back of the Petition and Order listing the following information for any additional cause numbers that did not fit on the Petition.

Cause #

Court Room

Offense(s) where convicted

Class of Offense(s) where convicted

Date of Arrest

Date of Conviction